Fair Work Commission - Form F2 - Unfair dismissal application (section 394)

Matter number: U2026/4821 | Date lodged: 22 May 2026

1. Applicant

Marisol Reyes, 14 Banksia Court, Penrith NSW 2750 | marisol.reyes@example.com | 0400 000 213

Representative: Hannah Lindqvist, Mercer & Lindqvist Lawyers, Level 3, 40 Bridge Street, Parramatta NSW 2150 | 02 5550 7700

2. Employer

Harbourline Freight Pty Ltd, ABN 11 222 333 444, Unit 4, 88 Dockside Drive, Port Botany NSW 2036. Number of employees: 142 (not a small business employer).

3. Employment and dismissal

Employment started: 14 February 2022. Position: Senior Logistics Coordinator, Level 5. Annual rate of pay: $91,291 (below the high income threshold). Enterprise agreement: AG2023/1982.

Date the dismissal took effect: 12 May 2026. Harbourline's letter of 5 May 2026 gave 5 May 2026 as the termination date; the letter of 11 May 2026 corrected the date to 12 May 2026. The application is lodged 10 days after the dismissal took effect and within the 21-day period in section 394(2) on either date.

4. Why the dismissal was harsh, unjust or unreasonable

• No valid reason: the weight figure came from a faulty weighbridge docket issued by the Dock Supervisor; the applicant attended the 8 April 2026 toolbox meeting.

• Allegation 1 was changed on 24 April 2026 and the applicant was given two working days to respond.

• No warnings were given before the show-cause letter of 20 April 2026.

• The dismissal followed a safety complaint on 12 March 2026 and a wage query on 17 March 2026.

• The applicant was under a medical certificate when dismissed.

5. Remedy sought

Reinstatement and continuity of service, or in the alternative compensation. A general protections application involving dismissal (Form F8, matter C2026/3390) was lodged on the same day.

Signed: Hannah Lindqvist, 22 May 2026